

--SUMMARY--

Decision No. 447/15

08-Jul-2015

I.Mackenzie - M.Trudeau - C.Salama

- Accident (occurrence)

No Summary Available

6 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w3415n]

Style of Cause:

Neutral Citation: 2015 ONWSIAT 1518



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 447/15

BEFORE:

I.R. Mackenzie : Vice-Chair
M.P. Trudeau : Member Representative of Employers
C. Salama : Member Representative of Workers

HEARING:

February 27, 2015, at Sudbury
Oral

DATE OF DECISION:

July 8, 2015

NEUTRAL CITATION:

2015 ONWSIAT 1518

DECISION(S) UNDER APPEAL: WSIB Appeals Resolution Officer (ARO) decision dated
October 23, 2012

APPEARANCES:

For the worker: Self represented

For the employer: Not participating

Interpreter: N/A

REASONS

(i) Introduction

- [1] The worker appeals a decision of the ARO, which upheld a denial of initial entitlement for a back injury.
- [2] The initial claim was for a lower back injury as a result of an accident on March 25, 2012. In a letter sent to the WSIB after the ARO decision was issued the worker also claimed a disablement. The Tribunal advised the worker that it had no jurisdiction to examine disablement, as the ARO had not considered disablement. The worker confirmed to the Tribunal that she was not claiming entitlement for the lower back on the basis of a disablement.
- [3] This appeal was scheduled for an oral hearing in Sudbury. On the morning of the hearing, the worker requested that she testify and make submissions by telephone due to difficulties with her car and her medical condition. The Panel agreed to hear the worker by telephone.

(ii) Issue

- [4] The issue under appeal is initial entitlement for a back injury from an accident that occurred on March 25, 2012.

(iii) Background

- [5] The now 54-year old worker started as a crew bus driver with the accident employer in August of 2007. She claims she was injured on March 25, 2012 when she slipped while exiting her vehicle. She alleges that she slid against the vehicle and struck her right hip and right elbow.
- [6] The accident employer's crew bus contract expired on April 13, 2012 and the worker's employment was terminated. She reported the injury to the WSIB on April 16, 2012. She sought medical attention on April 23, 2012.
- [7] The WSIB Eligibility Adjudicator denied entitlement as proof of accident could not be established. The ARO denied the appeal on the basis of the delay in reporting the accident and on the basis of different histories provided to attending physicians.

(iv) Law and policy

- [8] Since the accident is alleged to have occurred in 2012, the *Workplace Safety and Insurance Act, 1997* (the "WSIA") is applicable to this appeal.
- [9] Pursuant to section 126 of the WSIA, the Board stated that the following policy packages, Revision #9, would apply to the subject matter of this appeal: Package # 241, Initial Entitlement and Package # 300, Decision Making/Benefit of Doubt/Merits and Justice.
- [10] Section 13 of the WSIA governs the worker's entitlement in this case:
13. (1) A worker who sustains a personal injury by accident arising out of and in the course of his or her employment is entitled to benefits under the insurance plan.
- Presumptions
- (2) If the accident arises out of the worker's employment, it is presumed to have occurred in the course of the employment unless the contrary is shown. If it occurs in the

course of the worker's employment, it is presumed to have arisen out of the employment unless the contrary is shown.

[11] The WSIA defines an accident as follows, at section 2(1):

“accident” includes,

- (a) a wilful and intentional act, not being the act of the worker,
- (b) a chance event occasioned by a physical or natural cause, and
- (c) disablement arising out of and in the course of employment;

[12] *Operational Policy Manual* (OPM) Document No. 15-02-01, entitled “Definition of an Accident” defines the concepts of “chance event” and “disablement”:

Chance event

A chance event is defined as an identifiable unintended event which causes an injury. An injury itself is not a chance event.

Disablement

The definition of disablement includes

- a condition that emerges gradually over time
- an unexpected result of working duties.

[13] OPM Document No. 11-01-01, entitled “the Adjudicative Process” sets out the criteria that must be satisfied in order for a claim to be allowed:

An allowable claim must have the following five points

- an employer (see 12-01-01, Who is an Employer?)
- a worker (see 12-02-01, Workers and Independent Operators)
- personal work-related injury
- proof of accident, and
- compatibility of diagnosis to accident or disablement history.

Proof of accident

Decision-makers may consider the following when examining proof of accident,

- Does an accident or disablement situation exist?
- Are there any witnesses?
- Are there discrepancies in the date of accident and the date the worker stopped working?
- Was there any delay in the onset of symptoms or in seeking health care attention?

(v) Summary of Evidence

[14] The worker drove a truck transporting crews. On March 25, 2012 she fell from her vehicle. There were no witnesses to the fall.

[15] The worker testified that she was getting out of the crew truck and slipped. The worker testified that she grabbed the seat belt to break her fall. She then hit her elbow against the seat. She testified that she hurt her back and suffered slipped discs. She also testified that she hurt her

eye in the fall. The worker was stabbed in an assault in 2010 and suffered nerve damage to her right eye.

- [16] The worker advised a representative of the party that contracted with the accident employer of her fall and she was told to go home and get changed. Her clothes were wet as a result of the fall. She testified that she took some extra-strength Tylenol and returned to work. The worker testified that the representative of the party that contracted with the accident employer allowed her to “take it easy” and only drive. She was not required to lift any bags or equipment for the rest of her time at the work site.
- [17] The worker was laid off on April 13, 2012 due to the end of the contract between the accident employer and the company that it was providing transportation for. The new contractor did not offer a position to the worker.
- [18] The worker reported the accident to her accident employer by email on April 16, 2012 at 1:43 a.m. In her email she stated that on March 25, 2012 she “fell coming out of the crew bus and injured my back and hip”. In the email she stated that she told a representative of the client who was on site. She also wrote in the email that she thought it was “just a bump” but that it “never got better”. In an email sent in the afternoon of April 16, 2012 she stated that it was her lower back and tail bone that might be injured. She also advised the employer that she had not yet sought medical attention.
- [19] The employer submitted a report of injury (Form 7) to the WSIB on April 16, 2012. In the description of the accident, the employer reported that when the worker was coming out of the crew bus, her left hand slipped from the door handle and her left leg slipped causing her to fall on her right hip and elbow. The employer noted that she went home to change her wet clothing and then returned to finish her shift.
- [20] The worker sought medical attention from a walk-in clinic on April 23, 2012. Dr. Paul Fredette provided a Health Professional’s Report (Form 8) on the same date. It listed the areas of injury as eyes, lower back, right arm and right elbow. His diagnosis was mechanical back pain. In terms of limitations, he stated that she should not do any prolonged sitting or standing.
- [21] The worker testified that she did not immediately seek medical attention because she thought her back would get better. She reported the accident to her employer when the back did not get better.
- [22] The worker submitted a report of injury (Form 6) on April 25, 2012. She listed the areas of injury as eyes, lower back and right arm. In her description of the accident she stated that she had a slipped disc in her lower back from a fall. In an attached note, the worker referred to her injury getting worse. She also referred to damage to her elbow. She also noted that the yard where she drove the crew bus was “very bumpy and rough”. In correspondence to the WSIB dated May 10, 2012, the worker stated that she hit her hip and tail bone while sliding out of the truck. She stated that she did not fall all the way to the ground. She also wrote that she hit her elbow on the side of the truck.
- [23] The Eligibility Adjudicator noted a phone conversation with the worker in May of 2012, where the worker stated that she was having problems with her back before March 25, 2012. The Eligibility Adjudicator explained to the worker that if she was attributing her ongoing back

problems to having performed her work over a period of time (i.e., a disablement), she would have to file a new claim.

- [24] The worker had an MRI on May 10, 2012. Dr. Jonathan Grynspan provided the following opinion: “Degenerative diskal disease and facet disease lumbar spine as described but no significant neurologic impingement detected radiographically”.
- [25] Dr. A.N. Nkut, the worker’s family physician, provided a health professional’s report (Form 8) on June 6, 2012. Dr. Nkut did not refer to the fall from the truck. He indicated that the injury occurred as a result of “long driving periods and sitting and twisting”. He indicated that there was a lower back sprain/strain. He stated that the diagnosis was “slipped disc”.
- [26] The worker had a previous claim with the accident employer for a fall down stairs in 2010. Entitlement was denied by the WSIB based on no proof of accident. The worker did not appeal that decision.

(vi) Analysis

- [27] The appeal is denied for the reasons set out in this section.
- [28] The issue before the Panel is that of initial entitlement with respect to the worker’s back and elbow injury, as the result of an accident on March 25, 2012. The worker referred to an eye injury, but there is no medical information on file to support an occurrence of an eye injury as a result of the accident. As noted in the introduction to this decision, the worker did not pursue a claim based on disablement.
- [29] As stated in the law and policy section of this decision, there must be five elements present to establish entitlement; a worker, an employer, a personal work-related injury, proof of accident and compatibility of diagnosis to accident history. Proof of the accident must be established by the evidence, on a balance of probabilities.
- [30] The evidence supports the finding that the worker fell from the truck. Although there were no witnesses, there is no dispute that her clothes did get wet. The Panel also found the worker to be credible in her description of her fall. However, the Panel finds that the worker has not demonstrated that there was a work-related injury or compatibility of the diagnosis to the accident history.
- [31] The medical evidence demonstrates that the worker had an underlying degenerative disc disease. In addition, she reported that she had previously had problems with her back. There is also limited medical evidence that the fall was connected to her ongoing back problems. The first medical report of April 23, 2012 refers to the fall from the truck but the subsequent medical report of June 6, 2012 from the worker’s family doctor refers to the nature of the work generally. As noted, this appeal relates to the accident of March 25, 2012 and is not a disablement claim.
- [32] The worker waited approximately three weeks after the fall (and after her layoff) before advising the accident employer of the accident. In addition, she did not seek any medical attention until April 23, 2012, almost a month after the fall.
- [33] Based on the foregoing, the Panel finds, on a balance of probabilities, that the worker has not established proof of accident. Accordingly, the appeal is denied.

DISPOSITION

[34] The appeal is denied.

DATED: July 8, 2015

SIGNED: I.R. Mackenzie, M.P. Trudeau, C. Salama